

25LBCV00201 25LBCV00201

County: los-angeles

Division: Civil Law and Motion

Department: S27

Hearing date: 2026-09-24

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Case Number: 25LBCV00201 Hearing Date: September 24, 2026 Dept: S27

a. Relief Sought

Defendant moves to bifurcate the liability phase of the trial from the damages phase of the trial. While not entirely clear from the notice of motion, which states only “liability” and “damages,” it appears Defendant also seek to bifurcate the punitive damages phase of the trial from the liability phase of the trial.

b. Law

Governing Bifurcation

Bifurcation is the procedure whereby the court may order separate trials of issues of parties joined in a single action. The objective of bifurcation is to avoid wasting time and money on the trial of damages issues if the liability issue is resolved against the plaintiff. Also, the procedure is not limited to separate trials of liability and damages; nor is it limited to dividing a case into only two parts. A party seeking bifurcation should request such relief as soon as the need becomes apparent. Delay may be a factor affecting the court’s exercise of discretion. Generally, the court has the inherent power to regulate the order of trial and, therefore, can entertain a motion to bifurcate at any time, even during the trial. However, where bifurcation is sought pursuant to CCP §598 (e.g., to obtain bifurcation of liability issue), the order must be made no later than 30 days before trial. (I.e., the motion must be heard and order made more than 30 days before trial.)

Pursuant to CCP §1048(b), "The court, in furtherance of convenience or to avoid prejudice, or when separate trials will be conducive to expedition and economy, may order a separate trial of any cause of action, including a cause of action asserted in a cross-complaint, or of any separate issue or of any number of causes of action or issues, preserving the right of trial by jury required by the Constitution or a statute of the state or of the United States."

c. Analysis

CCP §3295(d) mandates bifurcation of the issue of punitive damages in the event the defendant requests such relief.

Despite the fact that the notice of motion is not clear in this regard, the Court finds it is in the interest of justice to hear the punitive damages phase of the trial, if necessary, after the liability and compensatory damages phase of the trial. The Court notes that Defendant fully briefed the issue in the memorandum of points and authorities, and Plaintiff did not oppose the motion.

To the extent Defendant moves to bifurcate the issue of liability from the issue of compensatory damages, the motion is denied. It is not clear whether Defendant seeks bifurcation in this regard, as Defendant's notice of motion and points and authorities seem to use the words "damages," "non-economic damages," and "punitive damages" interchangeably. Defendant did not meaningfully show how or why liability should be bifurcated from economic/compensatory damages.

Defendant is ordered to give notice.